

22STCV04087 22STCV04087

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Case Number: 22STCV04087 Hearing Date: August 13, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: August 13, 2026

Case Name: Caldwell v. Live Nation World

Wide, Inc., et al.

Case

No.: 22STCV04087

Matter: Motion for Summary Judgment or, in the Alternative, Summary

Adjudication

Moving Party: Defendant

Black Tide Events, LLC

Responding Party: Plaintiffs Darrylene Corniel and Estate

of Darrell Caldwell, by and through Darrylene Corniel as Personal

Representative for the Motion for Summary Judgment

Tentative

Ruling: Defendant Black Tide Events, LLC's motion for summary judgment, or in the alternative summary adjudication, is denied.

Plaintiff

Darrylene Corniel ("Corniel") and Estate of Darrell Caldwell ("Estate")

(collectively "Plaintiffs") filed their action against Live Nation Worldwide

Inc., C3 Presents LLC, Bobby Dee Presents, Inc., Snoop Dogg's LLC, Jeff Shuman,

University of Southern California ("USC"), LAFC Sports LLC, Major League

Soccer, LLC, CISS Management Group, CI Security Specialists, Inc. and Does 1 to

100. The FAC alleges three causes of action on behalf of the Estate: (1)

wrongful death sounding in negligence; (3) wrongful death – premises liability;

and (5) wrongful death – negligent hiring, supervision, training, and/or

retention. The FAC alleges three causes of action on behalf of Corniel for: (2)

survival action sounding in negligence; (4) survival action – premises

liability; and (6) survival action – negligent hiring, supervision, training,

and/or retention. The FAC alleges that on December 18, 2021, Darrell Caldwell,

also known as Drakeo the Ruler ("Decedent"), was set to perform at the Once

Upon A Time in LA Music Festival ("Festival"), where, allegedly, a dispute

arose that resulted in his wrongful death ("Subject Incident").

On June 26,

2022, Plaintiffs' case was consolidated with *Caldwell v. Live Nation World*

Wide, Inc., et al.

On March

22, 2026, Plaintiffs named Defendant Black Tide Events, LLC ("Defendant") as

Doe 3.

Defendant moves

for summary judgment or, in the alternative, summary adjudication as to all six

of Plaintiffs' causes of action. Plaintiffs oppose.

Legal Standard

"The party

moving for summary judgment bears the burden of persuasion that there is no

triable issue of material fact and that he is entitled to judgment as a matter

of law." *¿*(*Aguilar v. Atlantic Richfield Co.* *¿*(2001) 25 Cal.4th 826, 850.)

A triable issue of material fact exists if the evidence would allow a

reasonable trier of fact to find the underlying fact in favor of the party

opposing the motion in accordance with the applicable standard of proof.

(*Ibid.*) *¿*

¿

"When

deciding whether to grant summary judgment, the court must consider all of the

evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.”²(Avivi v. Centro Medico Urgente Medical Center³(2008)

159 Cal. App. 4th 463, 467; Code Civ. Proc. § 437c, subd. (c).)

Evidentiary Objections

Both

Plaintiffs and Defendant made evidentiary objections.

Defendant

makes 33 evidentiary objections to Plaintiff's evidence. The Court overrules

all 33 evidentiary objections.

Plaintiff

makes six evidentiary objections to Sean Akhavan's declaration. The Court rules

in the following manner:

Sustained: 2

(Improper Opinion/Legal Conclusion); 3 (Argumentative/Conclusory/

Improper Opinion); 4 (Improper

Opinion/Legal Conclusion); 6 (Improper Opinion/Legal Conclusion)

Overruled: 1,

Plaintiffs

also make four evidentiary objections to Dominique Sicari's declaration. The

Court overrules all four evidentiary objections.

Request for Judicial Notice

Defendant

requests that the Court take judicial notice of two court documents: (1)

Plaintiffs' FAC; and (2) the Court's ruling on February 26, 2026.

The Court

grants Defendant's request for judicial notice pursuant to Evidence Code

section 452, subdivision (d) as to both requests.

Analysis

Defendant

moves for summary judgment or in the alternative, summary adjudication on the

grounds that: (1) Defendant is entitled to summary judgment as to all causes of

action; (2) Defendant did not owe a duty to Decedent and did not proximately

cause Decedent's death as to the first cause of action; (3) Defendant did not

owe a duty to Decedent and did not proximately cause Decedent's death as to the

second cause of action; (4) Defendant did not owe a duty to Decedent and did

not proximately cause Decedent's death as to the third cause of action; (5)

Defendant did not owe a duty to Decedent and did not proximately cause

Decedent's death as to the fifth cause of action; (6) Defendant is entitled to judgment as to the fifth cause of action because Defendant did not hire, retain, or any security personnel; and (7) Defendant is entitled to judgment as to the sixth cause of action because Defendant did not hire, retain, or any security personnel. The FAC alleges three causes of action: a wrongful death claim and a separate survivor claim. Because the evidence used in each cause of action is identical, the Court will address the three causes of action based on their elements.

Preliminary

Issues

In

opposition, Plaintiffs raise two procedural issues in Defendant's moving papers. First, Plaintiffs argue that the separate statement is untimely, and second that Defendant's motion for summary adjudication is defective.

Code of

Civil Procedure section 437c, subdivision (a)(2) requires that "[n]otice of the motion and supporting papers shall be served on all other parties to the action at least 81 days before the time appointed for hearing." (Code Civ. Proc., § 437c, subd. (a)(2).)

Defendant

admits that when it initially served the moving papers with the incorrect draft used and subsequently filed and served the updated separate statement. Statutorily, the deadline to timely serve all moving papers on the parties was May 24, 2026.

The amended proof of service attached states that Plaintiffs were served through messenger and email on May 22, 2026. While the email service was untimely, the messenger service was timely.

Regarding

Defendant's motion for summary adjudication, the Court finds that there is confusion on the part of both of the parties.

"A party

may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, . . . A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Code Civ. Proc., § 437c, subd. (f)(1).)

Defendant

states that it requests summary adjudication in the alternative because Plaintiffs cannot show causation. (Mot., 11:28-12:1.) Code of Civil Procedure section 437c, subdivision (f) makes it clear that the Court cannot grant a motion for

summary adjudication unless it completely disposes of a cause of action, unlike if a moving party seeks summary adjudication as to the issue of duty without completely disposing of a cause of action. Thus, for the Court to grant summary adjudication as to causation it must dispose of the entire cause of action. However, most importantly, Defendant's notice of motion moves for summary judgment and in the alternative summary adjudication, and identifies the issues in each of the causes of action that it argues warrant granting of its motion. Additionally, the Defendant's Amended Separate Statement reflects each issue as written on the notice of motion in compliance with California Rules of Court, rule 3.1350(b).

Thus,

Plaintiff's procedural objections are inapplicable and incorrect. The Court will address the merits of Defendant's motion for summary judgment and summary adjudication.

First and Second Cause of Action

– Negligence (Wrongful Death) and (Survival Action)

““To

establish a cause of action for negligence, the plaintiff must show that the

‘defendant had a duty to use due care, that he breached that duty, and that the

breach was the proximate or legal cause of the resulting injury.’ [Citation.]

Recovery for negligence depends as a threshold matter on the existence of a legal duty of care.” [Citation.] “[T]he existence and scope’ of the defendant’s duty is one of law to be decided by the court, not by a jury, and therefore it generally is ‘amenable to resolution by summary judgment.’

[Citation.]” (Murphy v. Pina (2025) 115 Cal.App.5th 305, 322 (citations omitted).)

Defendant

contends that it did not owe a duty of care to Plaintiffs with respect to Decedent’s death because it: (1) did not own, possess or control the Music Festival Premises, including the area where the Subject Incident occurred; (2) did not owe a duty to protect from third-party criminal conduct; and (3) was not engaged in a joint venture with the Festival Promoters.

“A

defendant cannot be held liable for the defective or dangerous condition of property which it did not own, possess, or control. Where the absence of ownership, possession, or control has been unequivocally established, summary judgment is proper.” (Isaacs v. Huntington Memorial Hospital (1985) 38 Cal.3d 112, 134 (Isaacs).)

As an

initial matter, Defendant does not provide any legal argument to support its

proposition that it was not engaged in a joint venture with the Festival

Promoters. Thus, this argument is undeveloped and not a basis for supporting

Defendant's motion.

The

undisputed material facts in the present motion are that Defendant did

not own lease, or licensed the premises where the Subject Incident occurred. (Undisputed

Material Facts ("UMF") 1) It is also undisputed that Defendant was hired under

the title of "Festival Director." (UMF 2) Defendant repeatedly contends that it

had a limited role as an independent contractor for the Festival; however,

Defendant's own evidence establishes that a triable issue of material fact

exists as to what its involvement and role was within the operations of the

Festival.

"The

"crucial element" for imposing a duty in such circumstances is control

([Citation.] "[w]hoever controls the land is responsible for its safety"),

the rationale being that whoever has the means to control the property can take

steps to prevent the harm." (Soto v. Union Pacific Railroad Co. (2020)

45 Cal.App.5th 168, 177.) Defendant relies on Sean Akhavan's Declaration and

the Agreement between C3 Presents, LLC and Black Tide Events, LLC, dated

December 10, 2021 ("Agreement"). The Court sustained evidentiary objections as

to Sean Akhavan's Declaration; thus, reliance on paragraph 3 of the declaration

is improper as that portion of the declaration is inadmissible. Second, the

Agreement that Defendant relies on creates a triable issue of material fact instead

of showing that no triable issue exists. The Agreement expressly states that

Defendant will:

. . . propose, manage, and execute

vendor relationships and project deadlines on behalf of C3/Live Nation, with

the goal of resulting in various revenue streams to include:

. . .

[Defendant] will provide operational

management services, including but not limited to:

. . .

.

Securing all event permits per venue and local

jurisdiction guidelines

.

Coordinating with local public authorities,

government agencies, and risk management team to create and implement a:

o

Traffic and Parking plan

o

Event Safety Plan

. . .

· Festival

management of vendors including, but not limited to:

o Police

o Security

(Black Tide Ex., A, p. 13-15 (emphasis added).)

Moreover,

Defendant argues that the Agreement language references the terms “security” or

“safety” as “administrative oversight coordination.” (Mot., 6: 25-28.) However,

the burden is on Defendant to support this claim, and not Plaintiffs. Defendant

relies on the same 11 undisputed material facts throughout its separate

statement. Some of the “undisputed material facts” are not undisputed material

facts but rather legal conclusions of the triable issues that are in dispute Defendant’s

role in the production of the Festival and the day of the Festival. (See UMF 3,

5, 8.) Per California Rules of Court, rule 3.1350(a) “[m]aterial facts’ are

facts that relate to the cause of action, claim for damages, issue of duty, or

affirmative defense that is the subject of the motion and that could make a

difference in the disposition of the motion.” (Cal. Rules of Court, rule

3.1350(a)(2); Code Civ. Proc., §437c, subd. (b)(1).) "The point of the separate statement is not to craft a narrative, but to be a concise list of the material facts and the evidence that supports them. 'The separate statement serves two important functions in a summary judgment proceeding: It notifies the parties which material facts are at issue, and it provides a convenient and expeditious vehicle permitting the trial court to hone in on the truly disputed facts.'" (Beltran v. Hard Rock Hotel Licensing, Inc. (2023) 97 Cal.App.5th 865, 875.)

Additionally,

Defendant asserts that Co-Defendant C3 was responsible for contracting with the security entities, and attaches the executed contracts. (Sicari Decl., ¶ 9.)

However, the dispute is whether Defendant had any control regarding the production of the Festival and execution of the security plans, if any control.

Defendant

also argues that at most awareness of the security plan does not show control.

(Mot., 7:9-15.) However, Defendant's reliance on Sea Horse Ranch, Inc. v.

Superior Court (1994) 24 Cal.App.4th 446 is questionable because the case

is based on criminal liability. The Sea Horse Ranch, Inc. case involves

the Court's review of the evidence presented in a preliminary hearing regarding

criminal charges. (Sea Horse Ranch, Inc. v. Superior Court (1994) 24

Cal.App.4th 446, 449.) Plaintiffs bring forth civil claims against Defendant.

Furthermore,

Defendant's reliance on the Court's ruling on USC's motion for summary judgment

is not a basis to grant Defendant's motion. USC separately met its burden of

proof and established that no triable issue of material fact existed, and the facts

of its role at the Festival were different than Defendant's.

For the reasons

listed above in this ruling, Defendant did not meet its burden to establish

that it did not owe Decedent a duty of care. Based on the Separate Statement

and evidence submitted by Defendant, there is a triable issue as to what its

role was leading up to the Festival and the Festival. The Court does not need

to address the remaining arguments of Defendant's motion regarding criminal

conduct and causation. The burden does not shift to Plaintiffs.

Thus,

Defendant's motion for summary judgment is denied. Defendant's motion for

summary adjudication as to the first and second causes of action is denied.

Third

and Fourth Cause of Action – Premises Liability (Wrongful Death) and

(Survival

Action)

Defendant

relies on the same arguments as the first and second causes of action because the claims are all based on negligence. Defendant also relies on the same 11 undisputed material facts to support its arguments. Because Defendant provides no other arguments or evidence to support its claims, Defendant does not meet its burden to establish that no triable issue of material facts exists as to the third and fourth causes of action. The burden does not shift to Plaintiffs to establish that a triable issue of material fact exists.

Thus,

Defendant's motion for summary adjudication as to the third and fourth causes of action is denied.

Fifth

and Sixth Causes of Action – Negligent Hiring/Retention/Supervision Training (Wrongful Death) and (Survival Action)

“A

principal who conducts an activity through an agent is subject to liability for harm to a third party caused by the agent's conduct if the harm was caused by the principal's negligence in selecting, training, retaining, supervising, or otherwise controlling the agent....’ [Citation.] ‘Liability under this rule is limited by basic principles of tort law, including requirements of causation and duty.’ [Citation.] Furthermore, ‘[l]iability under this rule also requires some nexus or causal connection between the principal's negligence in selecting

or controlling an actor, the actor's employment or work, and the harm suffered by the third party.' " (Phillips v. TLC Plumbing, Inc. (2009) 172

Cal.App.4th 1133, 1140.)

Defendant

argues that because it did not contract or retain any security providers for the Festival, and "had minimal passive oversight over the Festival," it cannot be held liable for the fifth and sixth causes of action. However, as addressed in this ruling, Defendant has not met its burden to establish how much of a role it played leading up to the Festival and at the Festival. While Defendant has continued to assert this proposition that it had "minimal control" throughout its motion, the separate statement does not support this basis. Because Defendant has not met its burden, the burden does not shift to Plaintiff.

Defendant's motion

for summary adjudication as to the fifth and sixth causes of action is denied.

Therefore,

Defendant has failed to demonstrate it is entitled to summary judgment or, in the alternative, summary adjudication.

Conclusion

Defendant

Black Tide Events, LLC's motion for summary judgment is denied.

Defendant

Black Tide Events, LLC's motion for summary adjudication is denied.